

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Catherine Cosmai	Team: Team # 4	CCRB Case #: 201109417	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/11/2011 7:15 PM	Location of Incident: § 87(2)(b)	Precinct: 46	18 Mo. SOL 1/11/2013	EO SOL 1/11/2013	
Date/Time CV Reported Fri, 07/15/2011 7:40 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/20/2011 9:10 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Jeffrey Griffin	00443	934963	046 PCT
2. POM Kyle Coppola	26255	945613	046 PCT
3. POM Misael Fernandez	11306	934854	046 PCT
4. An officer			

Officer(s)	Allegation	Investigator Recommendation
A.POM Kyle Coppola	Force: PO Kyle Coppola used physical force against § 87(2)(b)	§ 87(2)(b)
B.POM Misael Fernandez	Force: PO Misael Fernandez used physical force against § 87(2)(b)	§ 87(2)(b)
C.POM Jeffrey Griffin	Force: PO Jeffrey Griffin used physical force against § 87(2)(b)	§ 87(2)(b)
D. An officer	Force: An officer used physical force against § 87(2)(b)	§ 87(2)(b)
E. An officer	Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)	§ 87(2)(b)

Case Summary

On July 15, 2011, § 87(2)(b) called IAB to file a complaint against NYPD officers. On July 20, 2011, the CCRB received the complaint. § 87(2)(b) reported that on July 11, 2011, her daughter § 87(2)(b) bus attendant called § 87(2)(b) to pick her daughter up. The bus attendant also called the police. PO Griffin, PO Coppola and PO Fernandez responded to the location before § 87(2)(b) did. Upon arriving, § 87(2)(b) was advised that she was being arrested for leaving her daughter. § 87(2)(b) began struggling with an unknown female officer who was taking her daughter away. When § 87(2)(b) went to pull her child away from the unknown female officer, PO Griffin, PO Coppola and PO Fernandez grabbed her and threw her against the police car and an officer pushed her face into the glass (**Allegation A, B and C**). § 87(2)(b) asked one of the officers for his badge number and he stated “I don’t care, here take it. You shouldn’t fucking hit an officer” (**Allegation D**). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

A check in BADS revealed § 87(2)(b) was arrested for § 87(2)(b) and the arresting officer was PO Griffin, Tax# 934963. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) The undersigned called Legal Aid and Bronx Defenders but they had no record of representing § 87(2)(b) On July 26, 2011, the undersigned called § 87(2)(b) and left a message requesting she return the call. A please call letter was sent to her on this date. On July 27, 2011, § 87(2)(b) contacted the undersigned and provided her lawyer’s information as § 87(2)(b) at § 87(2)(b) The undersigned called § 87(2)(b) on this date but the mailbox was full and would not allow a new message to be recorded.

§ 87(2)(b) called the undersigned back on July 27, 2011, and stated that she was switching lawyers and wanted the opportunity to speak with them. A deadline of August 12, 2011, was given to § 87(2)(b) to contact the undersigned or have her new lawyer contact the undersigned. It was explained to her that if she did not call by this date, her case would be closed without a full investigation. On August 5, 2011, the undersigned called § 87(2)(b) to remind her of the deadline that was given to her. She stated that she would return the call by August 12, 2011. To date, § 87(2)(b) has not contacted the CCRB.

§ 87(2)(g)

§ 87(2)(g)

Team: __4__

Investigator: _____ : _____
Signature Catherine Cosmai _____
Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date